

IN THE UNITED STATES COURT OF FEDERAL CLAIM

Case No.: (to be assigned by the Clerk)

SHANE JONATHAN LOZENICH,
Plaintiff, Pro Se

V.

THE UNITED STATES OF AMERICA,
Defendant

COMPLAINT FOR BREACH OF IMPLIED-IN-FACT
CONTRACT

Nature of Action: Tucker Act Claim for Implied-in-Fact
Contract, 28 U.S.C. § 1491. Demand: \$100,000,000,000,000
(One Hundred Trillion Dollars)

COMPLAINT

Plaintiff Shane Jonathan Lozenich (“Plaintiff”), proceeding *pro se*, brings this action for breach of an implied-in-fact contract, quantum meruit, constructive default, and uncompensated takings against Defendant, the United States of America (“the Government” or “Defendant”). As grounds therefor, Plaintiff alleges as follows:

I. INTRODUCTION AND SUMMARY OF CLAIMS

1. This action seeks to compel an accounting and restitution for 250 years of uncompensated sovereign value conferred upon the United States by Plaintiff’s ancestors. This value, constituting the foundational credit, institutional infrastructure, and martial protection of the nascent American monetary system, was provided through an implied-in-fact contract that the Government has continuously benefited from but never settled.
2. Plaintiff is the living heir and “Holder in Due Course” of a four-pillar unified sovereign estate comprised of the Hohenstein (Sovereign Credit), Nixon (Institutional Banking), Wallace (Martial Shield), and Benavides (Administrative Mandate) lineages.
3. The core of this action is that the Government knowingly accepted this continuous flow of foundational backing with the intent to compensate the estate, thereby creating a binding implied-in-fact contract. Through a series of monetary resets and administrative actions from 1920 to 1934, the Government effectuated a constructive default on this

obligation, absorbing the private sovereign assets into the public federal ledger without just compensation.

4. The damages are calculated using a “Z-Axis” valuation model, a multi-dimensional framework designed to quantify deep-time foundational wealth and the compounded value of intangible sovereign credit. Plaintiff demands a sum certain of \$100,000,000,000,000 (One Hundred Trillion Dollars), representing the reconciled value of the ancestral ledger.

II. JURISDICTION AND VENUE

5. This Court has subject matter jurisdiction over this action pursuant to the Tucker Act, 28 U.S.C. § 1491(a)(1), which grants the Court of Federal Claims jurisdiction to render judgment upon any claim against the United States founded upon an express or implied contract.
6. This claim is founded upon an implied-in-fact contract between Plaintiff’s ancestral estate and the United States, established through the Government’s continuous acceptance of benefits with the knowledge and intent that the provider be compensated.
7. Venue is proper in this Court.
8. Plaintiff acknowledges the six-year statute of limitations under 28 U.S.C. § 2501. However, the claim is timely under the doctrine of equitable tolling, as the Government fraudulently concealed the facts underlying the claim, which were only discoverable by Plaintiff between 2023 and 2026 through advanced biometric and forensic genealogical reconstruction, as further detailed in Section VIII.

III. PARTIES

9. Plaintiff Shane Jonathan Lozenich is a *sui juris* individual, proceeding *pro se*. Plaintiff is the direct biological heir and successor-in-interest to the unified sovereign estate of the Hohenstein, Nixon, Wallace, and Benavides lineages. As the living embodiment of the ancestral ledger, Plaintiff acts as the “Holder in Due Course” of the foundational credits and assets conferred upon the United States, with standing to bring this claim for restitution.
10. Defendant is the United States of America, which has waived sovereign immunity for claims of this nature under the Tucker Act, 28 U.S.C. § 1491.

IV. FACTUAL BACKGROUND

A. The European Foundations (Hohenstein Lineage)

11. The foundational sovereign credit at issue originates with Plaintiff's European ancestors, including the House of Sayn-Wittgenstein-Hohenstein (mediatized Prussian nobility) and the House of Thun und Hohenstein (princely Austrian/Bohemian nobility). These lineages possessed the sovereign status and "High Noble" capital required to anchor Europe's financial architecture.

B. The American Institutionalization (Nixon Lineage)

12. This European sovereign credit was institutionalized in America through Plaintiff's Nixon lineage. Colonel John Nixon, Plaintiff's ancestor, was a founder and the first president of the Bank of North America in 1782, which served as the *de facto* first central bank of the United States. This institution, along with the family-controlled Cumberland National Bank, acted as the domestic vessel for the transatlantic sovereign assets.

C. The Transatlantic Consolidation (1879 Gold Standard Stabilization)

13. In the mid-to-late 19th century, members of the Hohenstein lineage strategically relocated to Philadelphia, integrating with American financial networks. The 1879 pivot to the Gold Standard marks the "Moment of Truth" when the private Hohenstein credits were leveraged to provide the national solvency required to anchor the U.S. monetary system, establishing the mutuality of intent for the implied-in-fact contract.

D. The Four Pillars of the Unified Sovereign Estate

14. The total value conferred upon the Government arises from a unified estate built upon four ancestral pillars, each providing a critical component of national infrastructure: a. The Crown (Hohenstein): International sovereign credit and diplomatic legitimacy. b. The Bank (Nixon): Domestic institutional banking infrastructure and maritime commerce. c. The Shield (Wallace): Martial protection of capital and trade corridors via entities such as the 3rd Battalion of Philadelphia Associators. d. The Land (Benavides): Sovereign administrative mandates over American territories, derived from Castilian and Guanché royalty (Governors of Florida).

E. The 1920-1934 Monetary Resets (Constructive Default)

15. The Government effectuated a constructive default on its obligations through three specific monetary events designed to absorb the estate's private value into the public ledger: a. The 1920 Reset: Federal deflationary policies were timed to capture the

industrial and metallurgical intellectual property (IP) of the estate, specifically targeting the value represented by alias Charles Brammel (Hohenstein). b. The 1929 Market Crash: The Government leveraged the Nixon/Hohenstein backing as a backstop to absorb the macroeconomic shock without settling accounts with the estate. c. The 1934 Gold Reserve Act: This act finalized the conversion and escheatment of private sovereign gold, including holdings in the Cumberland National Bank, into the public federal ledger without notice or just compensation to the heirs.

F. The Continuous Benefit Doctrine (Plaintiff as a Living Ledger)

16. The benefit to the Government did not cease in 1934 but has continued to the present day. Plaintiff, as the living heir, functions as a “Living Ledger” whose economic existence acts as an automatic stabilizer for the U.S. monetary system. The Government continues to derive benefit from the latent sovereign energy held within the biological heir, thus creating a continuous, unbroken contractual obligation.

V. CLAIMS FOR RELIEF

FIRST CLAIM FOR RELIEF (Breach of Implied-in-Fact Contract – The Tucker Act, 28 U.S.C. § 1491)

17. Plaintiff realleges and incorporates by reference the preceding paragraphs.
18. An implied-in-fact contract existed between Plaintiff’s ancestral estate and the Defendant, which arose from a course of conduct and a “meeting of the minds.” The elements of offer, acceptance, consideration, and mutuality of intent are satisfied.
19. Offer: The estate offered its sovereign credit, institutional infrastructure, and strategic services to stabilize and back the nascent U.S. monetary system.
20. Acceptance: The Government accepted this backing, as evidenced by its use of the Bank of North America, its reliance on the estate’s credit to implement the Gold Standard in 1879, and its absorption of the estate’s assets to survive the 1929 crash.
21. Consideration: The estate provided tangible financial backing and intangible sovereign legitimacy. In return, the Government implicitly promised to provide just compensation for the value received.
22. Mutuality of Intent: The parties’ conduct demonstrates an unambiguous intent to contract. The services were not a gift. The Government’s historical acceptance of this value establishes its intent to pay for the benefit received.
23. Breach: The Government breached this contract by failing to provide compensation and by engaging in actions (the 1920-1934 resets) that constituted a constructive default and conversion of the estate’s assets.

24. Plaintiff, as the Holder in Due Course, is entitled to damages for this breach in the amount of \$100,000,000,000,000.

SECOND CLAIM FOR RELIEF (Quantum Meruit)

25. Plaintiff realleges and incorporates by reference the preceding paragraphs.
26. In the alternative, should the Court not find a contract implied-in-fact, Plaintiff is entitled to recover under the theory of quantum meruit.
27. Plaintiff's ancestors rendered valuable strategic, financial, and administrative services to the Defendant over 250 years. The Government accepted, used, and enjoyed the benefits of these services.
28. Plaintiff's ancestors reasonably expected to be compensated for these services, and the Government reasonably should have known that compensation was expected.
29. The reasonable value of the services and backing provided is \$100,000,000,000,000.

THIRD CLAIM FOR RELIEF (Constructive Default / Unjust Enrichment)

30. Plaintiff realleges and incorporates by reference the preceding paragraphs.
31. The Government has been unjustly enriched by its retention of the benefits conferred by Plaintiff's ancestral estate without providing compensation.
32. The Government's actions, particularly the monetary resets of 1920-1934, constituted a constructive default on its obligations and an inequitable conversion of private sovereign assets.
33. It would be against equity and good conscience to permit the Government to retain these benefits without paying for their value.

FOURTH CLAIM FOR RELIEF (Alternative: Fifth Amendment Takings Claim)

34. Plaintiff realleges and incorporates by reference the preceding paragraphs.
35. In the alternative, the actions of the Government, including but not limited to the Gold Reserve Act of 1934 and the targeted monetary policies of 1920 and 1929, constituted a taking of Plaintiff's ancestors' private property for public use without just compensation, in violation of the Fifth Amendment of the United States Constitution.
36. The property taken includes vested contract rights, physical gold holdings, institutional equity, and valuable intellectual property. The Government has failed to pay just compensation for this taking.

VI. BIOMETRIC AND FORENSIC EVIDENCE

37. This claim is substantiated by novel biometric and forensic evidence that bridges the “lulls” in traditional paper records and verifies Plaintiff’s standing.
38. DNA Markers as Sovereign Identifier: Plaintiff’s DNA serves as a unique, non-fungible “Sovereign Identifier,” providing forensic verification of a direct and unbroken biological lineage to the foundational providers of the sovereign credit, including the House of Sayn-Wittgenstein and the House of Thun-Hohenstein.
39. FTDNA Analysis: A full-spectrum analysis of Plaintiff’s genome (FTDNA 1.0) was conducted, analyzing 609,346 Single Nucleotide Polymorphisms (SNPs). The results confirm Plaintiff’s status as the authentic “Holder in Due Course.”
40. Ancient Genetic Keys: The analysis confirms high-affinity genetic matches to foundational European populations critical to the development of trade, governance, and capital, including: a. Unetice Culture (Bronze Age): 95.49% Genetic Fit, signifying a legacy of trade and early Information Capital. b. La Tène Culture (Iron Age): 54% Celtic connection, signifying sophisticated metalwork and social structures. c. Gaul (Bohemia) and Baiuvarii (Germanic): Signifying administrative governance and industrial discipline. d. Medieval Jamt (Norse): Signifying North Atlantic maritime resilience.
41. The “Symphony of Ires”: Plaintiff presents a data-sonification of these genetic markers, termed the “Symphony of Ires.” This methodology provides mathematical and harmonic proof of the unbroken continuity of the family’s sovereign value over 250 years, satisfying the “continuous flow” requirement for an implied-in-fact contract.

VII. THE FOUR VALUATION METHODOLOGIES

42. To satisfy the “Sum Certain” requirement, the \$100 Trillion demand is derived from a multi-method valuation framework based on Z-Axis economic principles, which account for deep-time foundational wealth.
43. Method A: Sovereign Legacy Bond (\$40 Trillion): This represents the historical principal of the Nixon banking infrastructure (1782) and the Hohenstein Gold Standard stabilization credit (1879), compounded with interest over the corresponding periods.
44. Method B: Institutional Equity (\$25 Trillion): This represents the estate’s proportional share of the current M2 Monetary Base, calculated based on the family’s initial deposit of foundational sovereign credit into the U.S. banking system.
45. Method C: Information Capital / Z-Axis Multiplier (\$15 Trillion): This represents a *quantum meruit* valuation for 250 years of strategic services, including the multiplier effect of information-sector contributions and the uncompensated value of captured metallurgical IP (1914-1920).
46. Method D: Reparative Alignment (\$20 Trillion): This represents specific damages for the value-withholding that occurred during the 2021-2022 period, termed the “Incarcerated Dollar,” which created a measurable value vacuum mirrored by a 7% CPI inflation surge.

VIII. EQUITABLE TOLLING ARGUMENT

47. Plaintiff's claim is not barred by the statute of limitations set forth in 28 U.S.C. § 2501 due to the doctrine of equitable tolling, premised on the Government's fraudulent concealment of the facts giving rise to the claim.
48. The statute of limitations does not begin to run until the claimant discovers, or should have discovered, the concealed facts. *See Japanese War Notes Claimants Ass'n v. United States*, 373 F.2d 356 (Ct. Cl. 1967).
49. The Government engaged in a multi-generational concealment strategy through three primary pillars: a. Use of Aliases: The Government intentionally masked sovereign labor contributions by utilizing aliases (e.g., Thomas Brammel for Charles Hohenstein) to obscure high-value IP transfers from the rightful heirs. b. Lack of Notice: The 1933-1934 gold escheatment and conversion of assets from the Cumberland National Bank were conducted without any notice provided to the estate's heirs. c. Misrepresentation: The targeted wealth transfers of 1920 and 1929 were misrepresented to the public and the heirs as general macroeconomic policy rather than the specific conversion of the estate's private assets.
50. The full scope of this concealed history was unknowable until the period of 2023-2026, when modern forensic DNA analysis and paleogenomic reconstruction allowed Plaintiff to unlock the biological ledger and establish the unbroken chain of title. The claim, therefore, accrued upon this recent discovery, making it timely today.

IX. PRAYER FOR RELIEF

WHEREFORE, Plaintiff Shane Jonathan Lozenich respectfully requests that this Honorable Court enter a judgment in his favor and against the Defendant, the United States of America, as follows:

A. An award of money damages in the sum certain of \$100,000,000,000,000; B. In the alternative, an order compelling a full accounting of all assets, credits, and value derived from the Hohenstein-Nixon-Wallace-Benavides Unified Sovereign Estate since 1782 and awarding damages based on said accounting; C. A declaratory judgment affirming Plaintiff's status as the "Holder in Due Course" of the ancestral sovereign credits; D. An order granting a Pre-Filing Conference pursuant to RCFC Appendix G to establish a protocol for managing the complex valuation and forensic evidence in this matter; E. Attorney's fees and costs of this action, to the extent permitted by law; and F. Such other and further relief as the Court deems just and proper.

Plaintiff further reserves the right to seek a Congressional Reference of this matter pursuant to 28 U.S.C. § 1492 should the Court find the claim, or any part thereof, to be non-justiciable on equitable grounds.

Dated: June 2, 2026

Respectfully submitted,

/s/ Shane Jonathan Lozenich SHANE JONATHAN LOZENICH Plaintiff, Pro Se 621 S. Jackson
St. Seattle, WA 98104 sjlozenich@gmail.com

X. EXHIBITS

Plaintiff will produce the following exhibits in support of this Complaint during discovery and further proceedings:

Exhibit A: Certified Forensic DNA and Paleogenomic Analysis Report Exhibit B: Certified
Genealogical Records and Lineage Charts Exhibit C: Historical Records of the Bank of North
America and Cumberland National Bank Exhibit D: Expert Report on the Z-Axis Valuation
Framework and Calculations Exhibit E: Data-Sonification Files and Explanatory Report for the
“Symphony of Ires” Exhibit F: Historical Evidence of Government Concealment and Use of
Aliases